

NEW YORK STATE SUPREME COURT
COUNTY OF BRONX

----- X
ADELAINE VAZQUEZ and NATHANIEL HOLMES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity; NEW YORK POLICE OFFICERS ARIF MAJEED (Shield # 2098) in his individual and official capacity; SERGEANT PAWEL LACHOWSKI (Shield # 3802) in his individual and official capacity; and "JOHN and/or JANE DOES" Nos. 1, 2, 3, etc. (whose identity are unknown but who are known to be personnel of the New York City Police Department), all of whom are sued individually and in their official capacities,

Defendants.
----- X

SUMMONS

Index No.:

Date Purchased:

Plaintiffs designated Bronx County as the place of trial.

The basis of venue is location of events giving rise to claims.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiffs' attorney, at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiffs, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Bronx. This action is brought in the County of Bronx because it is the place in which the torts originated.

Dated: New York, NY
June 12, 2017

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, PH/26 Floor
New York, New York 10016
(212) 490-0400

By: /s/Marc A. Cannan
Marc A. Cannan

*Attorneys for Plaintiffs Adelaine Vazquez and
Nathaniel Holmes*

Defendants' addresses:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007

NYPD Officer Arif Majeed (Shield # 2098)
New York City Police Department – 40th Precinct
257 Alexander Avenue
Bronx, NY 10454

NYPD Sergeant Pawel Lachowski (Shield # 3802)
New York City Police Department – 40th Precinct
257 Alexander Avenue
Bronx, NY 10454

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VERIFIED COMPLAINT**JURY TRIAL DEMANDED**

Index No.:

Plaintiffs ADELAINE VAZQUEZ and NATHANIEL HOLMES (collectively
"PLAINTIFFS"), by their attorneys, Beldock Levine & Hoffman LLP, as and for their complaint
against the defendants named above allege as follows:

PRELIMINARY STATEMENT

1. This civil rights action seeks redress under 42 U.S.C. § 1983 and the United States Constitution, and under the common law and the Constitution of the State of New York for injuries PLAINTIFFS sustained from the unconstitutional conduct of defendants THE CITY OF NEW YORK and New York City Police Department Police Officers ARIF MAJEED, Sergeant PAWEL LACHOWSKI, and other "JOHN and/or JANE DOE" police officers.

2. On the night of March 14, 2016, Plaintiffs ADELAINE VAZQUEZ and NATHANIEL HOLMES were walking home when Defendant Police Officers ARIF MAJEED

and Sergeant PAWEL LACHOWSKI stopped and questioned them, despite no indication of criminal activity. Even though PLAINTIFFS told the officers there was no problem, police officers ARIF MAJEED and Sergeant PAWEL LACHOWSKI, without cause, violently assaulted and falsely arrested NATHANIEL HOLMES. When police officer ARIF MAJEED realized ADELAINE VAZQUEZ was recording the officers' unlawful conduct towards NATHANIEL HOLMES with a phone, he violently assaulted and falsely arrested her. Police officer ARIF MAJEED and Sergeant PAWEL LACHOWSKI then falsely charged PLAINTIFFS with Resisting Arrest, Obstructing Governmental Administration in the second degree, and Disorderly Conduct. The Bronx County District Attorney declined to prosecute the police officers' baseless charges against PLAINTIFFS because it was patently clear that they had not engaged in any criminal conduct.

3. PLAINTIFFS seek (i) compensatory damages for loss of liberty, physical and psychological pain, and other injuries caused by the illegal actions of the defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; (iii) costs and attorneys' fees; (iv) and such other and further relief as this Court deems equitable and just.

JURISDICTION

4. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 for violations of plaintiffs' rights secured by the Fourth and Fourteenth Amendments to the United States Constitution; and for violations of plaintiffs' rights under Article 1 §§ 1, 6, and 12 of the New York State Constitution and the statutory and common law of New York State.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. Pursuant to CPLR 503 and 504, venue is proper in the Bronx because it is the county in which plaintiffs reside and where the events giving rise to this action took place.

JURY DEMAND

7. PLAINTIFFS demand a trial by jury in this action on each and every one of their claims for which jury trial is legally available.

THE PARTIES

8. Plaintiff ADELAINA VAZQUEZ (“VAZQUEZ”) is a Latin-American citizen of the United States, who is and was at all times relevant to this complaint a resident of New York County, City and State of New York.

9. Plaintiff NATHANIEL HOLMES (“HOLMES”) is an African-American citizen of the United States, who is and was at all times relevant to this complaint a resident of Bronx County, City and State of New York.

10. Defendant THE CITY OF NEW YORK (“CITY”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and does maintain the New York City Police Department (“NYPD”) which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers.

11. Defendants Police Officer ARIF MAJEED (“MAJEED”) (Shield # 2098), Sergeant PAWEL LACHOWSKI (Shield # 3802) (“Sgt. LACHOWSKI”), and “JOHN and/or JANE DOES” Nos. 1, 2, 3, etc. (“DOES”) are NYPD police officers who, *inter alia*, unlawfully

detained, searched, frisked, arrested, and assaulted PLAINTIFFS without suspicion of any illegal activity, and lodged false criminal charges against them.

12. At all times relevant herein, defendants MAJEED, Sgt. LACHOWSKI, and DOES were NYPD Police Officers.

13. Upon information and belief, defendants MAJEED, Sgt. LACHOWSKI, and DOES are still NYPD Police Officers.

14. At all times relevant herein, defendant police officers MAJEED, Sgt. LACHOWSKI, and DOES acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the NYPD.

15. At all times relevant herein, defendant police officers MAJEED, Sgt. LACHOWSKI, and DOES violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution and under equivalent New York State constitutional provisions, of which reasonable police officers in their circumstances would have known.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

16. PLAINTIFFS served Notices of Claim upon the CITY on April 6, 2016, within ninety (90) days of the events giving rise to their claims.

17. PLAINTIFFS attended hearings pursuant to section 50-h of the New York General Municipal law, HOLMES on June 10, 2016, and VAZQUEZ on June 15, 2016.

18. More than thirty (30) days have elapsed since PLAINTIFFS served their Notices of Claim and the CITY has not offered adjustment or payment thereof.

19. This action is filed within one year and ninety days of the events giving rise to PLAINTIFFS' claims.

STATEMENT OF FACTS

20. On the evening of March 14, 2016, VAZQUEZ was working at the Dollar Tree discount store at 460 Willis Avenue in the Bronx, New York.

21. VAZQUEZ'S boyfriend, HOLMES, met VAZQUEZ at the Dollar Tree at the end of her shift, around 9:30 p.m.

22. HOLMES and VAZQUEZ began walking down Willis Avenue, towards HOLMES' residence on East 143rd Street.

23. At approximately 9:35 p.m., on 145th Street and Willis Avenue, defendants MAJEED and Sgt. LACHOWSKI pulled up alongside PLAINTIFFS in an NYPD van.

24. MAJEED asked PLAINTIFFS if everything was okay.

25. VAZQUEZ told MAJEED that everything was okay.

26. MAJEED and Sgt. LACHOWSKI exited the van and approached PLAINTIFFS.

27. MAJEED asked PLAINTIFFS what was going on.

28. VAZQUEZ told MAJEED that nothing was going on.

29. MAJEED grabbed HOLMES by the wrist and said he wanted to know what was going on.

30. HOLMES told MAJEED that nothing was going on.

31. VAZQUEZ told the officers that she and HOLMES were going home, and were not doing anything wrong.

32. Sgt. LACHOWSKI grabbed VAZQUEZ by the wrist and shoved her.

33. MAJEED and Sgt. LACHOWSKI then grabbed HOLMES.

34. Although HOLMES was not resisting the police officers, MAJEED yelled, “Are you resisting?”

35. HOLMES responded, “Resisting what? Why am I being arrested?”

36. MAJEED and Sgt. LACHOWSKI did not respond to HOLMES’ questions.

37. VAZQUEZ began filming the officers assaulting HOLMES.

38. Sgt. LACHOWSKI put HOLMES in a chokehold.

39. HOLMES was unable to breathe and feared for his life.

40. MAJEED and Sgt. LACHOWSKI slammed HOLMES to the ground face first.

41. Sgt. LACHOWSKI forced his knee into HOLMES’ neck.

42. MAJEED violently yanked HOLMES’S hands behind his back and handcuffed him.

43. VAZQUEZ continued filming and begged MAJEED and Sgt. LACHOWSKI to leave HOLMES alone.

44. MAJEED and Sgt. LACHOWSKI said they would leave HOLMES alone once they knew what was going on.

45. A woman observing the assault told MAJEED and Sgt. LACHOWSKI that assaulting HOLMES was “not asking him what’s going on.”

46. MAJEED and Sgt. LACHOWSKI began rubbing HOLMES’S face into the cement.

47. As a result, HOLMES’S face became abraded and bloody.

48. HOLMES moaned and gasped in pain.

49. At some point, MAJEED and Sgt. LACHOWSKI turned HOLMES over and searched his pockets.

50. MAJEED and Sgt. LACHOWSKI found nothing illegal as a result of their search.

51. VAZQUEZ continued pleading with MAJEED and Sgt. LACHOWSKI to get off of HOLMES.

52. MAJEED told VAZQUEZ to back up.

53. MAJEED looked both ways and then forcefully pushed VAZQUEZ in the chest.

54. VAZQUEZ stumbled backwards into a car.

55. MAJEED then punched VAZQUEZ with a closed fist on the right side of her face.

56. VAZQUEZ fell into the car again and cried out in pain.

57. MAJEED attempted to punch VAZQUEZ in the face two more times.

58. MAJEED told VAZQUEZ that she was getting arrested too.

59. VAZQUEZ asked why she was getting arrested when she did nothing wrong.

60. Three or four additional NYPD vans arrived as backup.

61. MAJEED and a backup police officer shoved VAZQUEZ to the ground and handcuffed her.

62. MAJEED dragged VAZQUEZ towards the police van.

63. VAZQUEZ asked MAJEED to stop dragging her because he was hurting her knee.

64. VAZQUEZ has suffered problems with her left knee ever since she had an accident approximately 11 years ago.

65. MAJEED put VAZQUEZ in a police van.

66. Police officers eventually brought HOLMES to his feet.

67. HOLMES asked the police officers where they were taking VAZQUEZ.
68. One of the officers responded, “Your bitch is getting locked up too.”
69. Police officers led HOLMES to one of the police vans and shoved him inside.
70. Two of the officers punched HOLMES several times in the ribs.
71. HOLMES hit his head against the van and became unconscious.
72. HOLMES and VAZQUEZ were driven separately to the 40th Precinct.
73. When HOLMES regained consciousness, he was inside of a single cell at the Precinct.
74. HOLMES was tightly cuffed and shackled.
75. HOLMES’ nose was bleeding.
76. A police officer asked HOLMES if he was alright.
77. HOLMES responded that he was not alright and asked why he was in handcuffs and shackles.
78. A police officer called EMS and HOLMES was taken to Lincoln Hospital.
79. Upon information and belief, one of the police officers falsely told medical personnel at Lincoln Hospital that HOLMES’S face was injured because he tried to hurt himself at the Precinct.
80. HOLMES was confined overnight at Lincoln Hospital.
81. At some point, VAZQUEZ and HOLMES were falsely charged with Resisting Arrest, Obstructing Governmental Administration in the second degree, and Disorderly Conduct.
82. Shortly after arriving at the Precinct, VAZQUEZ was searched twice by two female officers.

83. The officers confiscated Ibuprofen from VAZQUEZ, as well as her job identification card, and her house keys.

84. VAZQUEZ was held in a single cell at the Precinct until approximately 4:00 a.m., when she was transported to Bronx Central Booking.

85. At Central Booking, VAZQUEZ was processed and confined from about 4:15 a.m. until about 11:00 a.m.

86. At approximately 11:00 a.m., VAZQUEZ was released by police officers without seeing a judge.

87. The Bronx County District Attorney's office declined to prosecute the false charges MAJEED and Sgt. LACHOWSKI had brought against VAZQUEZ.

88. Police officers warned VAZQUEZ not to say anything.

89. Earlier, at approximately 7:00 a.m., several police officers met HOLMES at Lincoln Hospital.

90. HOLMES was also transported to Bronx Central Booking where he was further searched and processed.

91. Eventually, HOLMES learned that the Bronx County District Attorney had declined to prosecute him on the charges MAJEED and Sgt. LACHOWSKI had brought against him.

92. The Bronx District Attorney's Office explained in an Affidavit Declining Prosecution that "the [alleged] verbal dispute, non-violent in nature, between both defendant Holmes and Vazquez as well as defendant Holmes's [alleged] refusal to talk did not constitute a criminal offense."

93. Over the next few days, HOLMES continued to feel pain in his head, wrists, ankles, and hands.

94. As a result, HOLMES returned to Lincoln Hospital for treatment.

95. VAZQUEZ suffered pain in her right knee, right shoulder, and in her head as a result of the police officers' treatment of her.

96. VAZQUEZ continues to suffer pain in her right knee today.

97. PLAINTIFFS' false arrests and assault at the hands of MAJEED and Sgt. LACHOWSKI caused them to suffer physical and psychological pain, humiliation, loss of liberty, and deprivation of their constitutional rights.

FIRST CAUSE OF ACTION
(Constitutional Violations -- 42 U.S.C. § 1983)
Against the Individual Defendants

98. PLAINTIFFS reallege and incorporate by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

99. In committing the acts and omissions complained of herein, defendant police officers MAJEED and Sgt. LACHOWSKI, and DOES acted under color of state law to deprive PLAINTIFFS of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. freedom from unreasonable search and seizure of their persons and property;
- b. freedom from arrest without probable cause;
- c. freedom from use of excessive force;
- d. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, of which wrongful detention PLAINTIFFS were aware and did not consent;

- e. freedom from the lodging of false charges against them by police officers and prosecutors, including, on information and belief, by some or all of the individual defendants; and
- f. freedom from deprivation of liberty without due process of law.

100. In committing the acts and omissions complained of herein, defendant police officers MAJEED and Sgt. LACHOWSKI, and DOES breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

101. As a direct and proximate result of defendant police officers MAJEED's, Sgt. LACHOWSKI's, and DOES' deprivation of PLAINTIFFS' constitutional rights, PLAINTIFFS suffered the injuries and damages set forth above.

102. The unlawful conduct of defendant police officers MAJEED, Sgt. LACHOWSKI, and DOES was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
(Individual Supervisory Liability - 42 U.S.C. Sec. 1983)
Against the Individual Supervisory Defendant

108. PLAINTIFFS repeat and reallege each and every allegation above as if fully set forth herein.

109. Sgt. LACHOWSKI was, at all relevant times, supervisory personnel in the NYPD, with oversight responsibility for the training, instruction, supervision and discipline of the named and unnamed individual police officer defendants who deprived plaintiffs of their federal constitutional rights.

110. Sgt. LACHOWSKI knew or should have known that the individual defendant

police officers were conducting unreasonable and retaliatory seizures and false arrests and detentions, and were maliciously making allegations against plaintiffs, depriving them of their due process of law and other constitutional rights identified above.

111. Sgt. LACHOWSKI was personally involved in the unreasonable and retaliatory search, seizure, and false arrest and detention of plaintiffs. Sgt. LACHOWSKI failed to take preventative and remedial measures to guard against such constitutional deprivations, such that plaintiffs would not be injured. Sgt. LACHOWSKI knew, or in the exercise of due diligence, should have known, that the actions taken against plaintiffs by the named and unnamed individual police officer defendants were likely to occur.

112. The failure of Sgt. LACHOWSKI to train, supervise and discipline the named and unnamed individual police officer defendants amounted to gross negligence, deliberate indifference or intentional misconduct which directly and proximately caused the injuries and damages to plaintiffs set forth above.

THIRD CAUSE OF ACTION
(New York State Constitutional Violations)
Against the Individual Defendants

103. PLAINTIFFS reallege and incorporate by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

104. Defendants' conduct breached the protections guaranteed to PLAINTIFFS by the New York State Constitution including, but not limited to, Article I, §§ 1, 6, and 12, and including the following rights:

- a. freedom from unreasonable search and seizure of their persons and property;
- b. freedom from arrest without probable cause;
- c. freedom from use of excessive force;

d. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, of which wrongful detention PLAINTIFFS were aware and did not consent;

e. freedom from the lodging of false charges against them by police officers and prosecutors, including, on information and belief, by some or all of the individual defendants; and

f. freedom from deprivation of liberty without due process of law.

105. The deprivation of PLAINTIFFS' rights under the New York State Constitution resulted in the injuries and damages set forth above.

FOURTH CAUSE OF ACTION
(False Arrest and False Imprisonment)
Against the Individual Defendants

106. PLAINTIFFS reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

107. Defendant police officers MAJEED, Sgt. LACHOWSKI and DOES, through the foregoing acts, caused PLAINTIFFS to be wrongfully detained without good faith, reasonable suspicion, or legal justification, of which detention PLAINTIFFS were aware and to which they did not consent.

108. Defendant police officers MAJEED, Sgt. LACHOWSKI and DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for PLAINTIFFS' rights and are therefore liable for punitive damages.

FIFTH CAUSE OF ACTION
(Assault and Battery)
Against the Individual Defendants

109. PLAINTIFFS reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

110. Defendant police officers MAJEED, Sgt. LACHOWSKI and DOES, without just cause, wilfully and maliciously used physical force against PLAINTIFFS causing them injury.

111. Defendant police officers MAJEED, Sgt. LACHOWSKI and DOES committed the foregoing acts intentionally, wilfully, and with malicious disregard for PLAINTIFFS' rights, and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION
(Negligence)
Against the Individual Defendants

112. PLAINTIFFS reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

113. Defendant police officers MAJEED, Sgt. LACHOWSKI and DOES owed PLAINTIFFS a duty of care, including the duty to exercise due care in the course of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

114. Defendant police officers MAJEED, Sgt. LACHOWSKI and DOES, through the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

115. All of these acts were performed without any negligence on the part of PLAINTIFFS and were the proximate cause of the injuries to PLAINTIFFS.

SEVENTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress)
Against the Individual Defendants

116. PLAINTIFFS reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

117. As police officers acting in the performance of their duties, defendant police officers MAJEED, Sgt. LACHOWSKI and DOES owed PLAINTIFFS a duty of care.

118. In breach of that duty, defendant police officers MAJEED, Sgt. LACHOWSKI and DOES endangered PLAINTIFFS' safety and caused PLAINTIFFS to fear for their safety.

119. As a result, PLAINTIFFS suffered emotional distress.

EIGHTH CAUSE OF ACTION
(Respondeat Superior)
Against Defendant City of New York

120. PLAINTIFFS reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

121. At all relevant times, defendant police officers MAJEED, Sgt. LACHOWSKI and DOES were employees of the City and were acting within the scope of their employment.

122. The CITY is therefore vicariously liable under the common law doctrine of *respondeat superior* for the actions of defendant NYPD police officers MAJEED, Sgt. LACHOWSKI and DOES set forth herein.

DEMAND FOR RELIEF

WHEREFORE, PLAINTIFFS demand the following relief against the defendants, jointly and severally:

(a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;

(b) punitive damages from defendant NYPD police officers MAJEED, LACHOWSKI and DOES to the extent allowable by law;

(c) attorneys' fees;

(d) the costs and disbursements of this action;

(e) interest; and

(f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
June 12, 2017

BELDOCK LEVINE & HOFFMAN LLP

By: /s/Marc A. Cannan
Marc A. Cannan
Attorneys for Plaintiffs
99 Park Avenue, Suite 2600
New York, New York 10016
(212) 490-0400

ATTORNEY'S VERIFICATION

I, Marc A. Cannan, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

I am the attorney of record for the Plaintiffs, Adelaine Vazquez and Nathaniel Holmes, who do not reside in the county where we maintain our office.

I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, and other pertinent information contained in my files.

Dated: June 12, 2017
New York, New York

By: 
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